

M/s Bansal Agro Farm v. U.P. Power Corp. Ltd.

Allahabad High Court · Division Bench · 22 March 2018 · Writ-C No. 9161 of 2018 · **Writ disposed; relegated to clause 6.5 with ₹5 lakh deposit; recovery stayed.**

HEADNOTE

A consumer disputing the correctness of an electricity bill was relegated to the complaint under clause 6.5 of the Electricity Supply Code, 2005. The Court directed a lump-sum deposit of ₹5 lakh within a month in lieu of the deposit contemplated by that clause, required the competent authority to decide the complaint in accordance with law most expeditiously, and stayed the balance of recovery until that decision or three months, whichever was earlier.

FACTUAL SUMMARY

M/s Bansal Agro Farm and another challenged a demand notice dated 3 March 2018 issued by the Executive Engineer, Dakshinchal Vidhut Vitran Nigam Limited, for recovery of ₹15,51,868 as electricity charges. The amount matched a bill dated 29 January 2018 that included arrears. Counsel submitted that the petitioners had been disputing the demand and arrears, but the departmental authorities had taken no action. The writ was listed on 20 March 2018 for production of the demand bill and finally heard on 22 March 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-accuracy-complaint

HOLDING

Because the petitioners disputed the correctness of the 29 January 2018 bill, the Court held that the dispute was to be resolved under clause 6.5 of the Electricity Supply Code, 2005, which permits a consumer to complain of bill inaccuracy to the competent authority for decision within seven days, subject to depositing the billed amount or charges on the six-month average. To avoid controversy over that deposit, the writ was disposed of directing a lump-sum deposit of ₹5 lakh within a month and relegating the petitioners to raise the dispute under clause 6.5; the authority was to consider and decide it in accordance with law most expeditiously, and the balance of recovery under the impugned citation remained stayed until that decision or three months, whichever was earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 29 JANUARY 2018 AND THE DEMAND OF ₹15,51,868

The Court did not examine the bill on merits and sent the dispute to clause 6.5. ¶ 1

NOT DECIDED — PAST DISPUTES OVER ELECTRICITY CHARGES AND ARREARS

The Court confined itself to the present demand under the 29 January 2018 bill. ¶ 1